TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR

Judge Jonathan Fish

June 29, 2026

UPDATED

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- Civil Court Reporter Pooling;
- Please see the Court's website at Court Reporter Interpreter Services for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Cirks Construction Inc. vs. Brian Record 2025-01503586	Motion to Be Relieved as Counsel of Record The motion by Jason Barth of Barth Law, PC, to be relieved as counsel of record for Brian Record dba Advanced Mechanical Specialties, is granted. The Court notes that the proposed order submitted as ROA 67 does not include the client's last known address and telephone number under section 6. Counsel shall submit a revised, proposed order with section 6 completed in its entirety. Upon the signing of the revised order, counsel shall serve the signed order on the client and all parties that have appeared. Jason Barth of Barth Law, PC will be relieved as counsel of record for Brian Record dba Advanced Mechanical Specialties, effective upon the filing of the proof of service of the signed order upon the client and all parties. Barth Law, PC is ordered to give notice of the ruling.
2	Corona vs. Discount Courier Services, Inc. 2025-01518743	**1.** Motion to Compel Arbitration **2.** Case Management Conference **Continued to 10/05/2026**
3	Doe vs. Boys & Girls Club Of Central New Mexico 2022-01296308	Motion to Dismiss Complaint Under the Doctrine of Forum Non Conveniens Defendant Dominic Yannoni's motion to dismiss this action on the ground of forum non conveniens is denied. **Facts** Plaintiff, who was born in 1976, alleges that starting when he was about 12, he was groomed and sexually abused by Dominic Yannoni, the Director of The Boys & Girls Club of Central New Mexico ("Boys & Girls Club NM"). Plaintiff alleges abuse and grooming behavior in

New Mexico and leading up to trips to California but specifically for this California lawsuit, alleges that Yannoni arranged at least three trips to Disneyland starting in 1990, during which visits Yannoni sexually abused Plaintiff. [First Amended Complaint ("FAC"), ¶¶ 1 at fn. 1, 18-35 and ¶¶ 35-36.] This has been consistent since the beginning of the case. [*See* Complaint (ROA #2), ¶¶ 1 at fn. 1, 19-34, 35-36 .]

In addition to Yannoni, Plaintiff sued Boy & Girls Club NM and Boys & Girls Club of America, Inc. ("Boys & Girls Club National"). [FAC, Complaint.] Boys & Girls Club NM and Boys & Girls Club National responded to Plaintiff's complaint before Yannoni did. Boys & Girls Club National successfully moved to quash for lack of personal jurisdiction. [4/6/23 Motion to Quash (ROA #69); 4/23/24 Minute Order ("ROA #239).]

Boys & Girls Club NM, too, moved to quash, but that motion was denied. [2/2/23 Motion to Quash (ROA #21); 7/20/23 Minute Order (ROA #108).] Boys & Girls Club NM also alternatively moved to dismiss for forum non conveniens; this motion to was denied. [*Id.*]

After this, on 9/21/23, Defendant Yannoni appeared in this action by filing a demurrer and motion to strike to Plaintiff's complaint. [ROA ## 143, 144.] The demurrer was sustained in part and the motion to strike was granted in part. [4/15/24 Minute Order (ROA # 238).]

Soon after that Plaintiff appealed the order granting Boys & Girls Club National's motion to quash. [5/13/25 Notice of Appeal (ROA #246).] The stay was lifted on 1/27/25 and Plaintiff ordered to file his FAC. [1/27/25 Minute Order (ROA #275).] Plaintiff did so and Defendant Yannoni filed his answer on 3/5/25. [ROA ## 277, 279.]

The court's file shows no further activity until almost a year later, when Defendant Yannoni filed the pending motion to dismiss on 1/23/26. [ROA #281.]

Legal Standard and Discussion

"When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." Code Civ. Proc. § 410.30(a).

Defendant's Motion Is Untimely

A party must bring such a motion to enforce a forum selection clause within a reasonable time. *Global Financial Distributors Inc. v.*

Superior Court (2019) 35 Cal.App.5th 179, 193. *See also Trident Labs, Inc. v. Merrill Lynch Commercial Finance Corp.* (2011) 200 Cal.App.4th 147, 155, 132 Cal.Rptr.3d 551 (although "[s]ection 410.30 does *not* say that the motion may be brought 'at any time,' " where "no limits are stated, a reasonableness standard is necessarily inferred")(reversing trial court's grant of motion to dismiss based on forum selection clause, concluding defendant's litigation of plaintiff's claim for 19 months before filing motion was unreasonable).

Here, Defendant has filed his motion roughly *two and a half years* after first appearing in this action. He filed it a year after the stay was lifted. Nor is the motion based on information developed since Yannoni first responded to Plaintiff's complaint. The information in the interrogatory response relied on by Defendant Yannoni is consistent with and tracks the allegations in Plaintiff's original complaint. Indeed, it was on these same facts that the Boys & Girls Club NM brought its prior motion to dismiss for forum non conveniens.

In short, Defendant Yannoni's motion to dismiss was not brought within a reasonable time and is thus untimely.

Merits

Forum non conveniens is an equitable doctrine invoking the court's discretionary power and seeking a determination that action may more appropriately and justly be tried elsewhere. *See Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751.

"In assessing a forum non conveniens motion the trial court looks first to whether the alternative forum is a suitable place for trial. [Citation.] If it is, then the court looks to the private interests of the litigants and the public interest in keeping the case in California. [Citation.]" *Century Indemnity Co. v. Bank of America* (1997) 58 Cal.App.4th 408, 412 (citing *Stangvik*, *supra*, 54 Cal.3d 744).

Only after the trial court reaches the conclusion that a suitable alternate forum exists, should it consider whether the benefits of the proposed alternative forum outweigh the reasons for keeping the litigation in California. *Investors Equity Life Holding Co. v. Schmidt* (2015) 233 Cal.App.4th 1363, 1368.

An alternative forum is "suitable" if it has *jurisdiction* and an action in that forum will not be barred by the *statute of limitations*. *Guimei v. General Elec. Co.* (2009) 172 Cal.App.4th 689, 696; *Chong v. Sup.Ct. (HBZ Finance Ltd.)* (1997) 58 Cal.App.4th 1032, 1036-1037; see *Investors Equity Life Holding Co. v. Schmidt, supra,* 233 Cal.App.4th at 1368; *Wang v. Fang* (2021) 59 Cal.App.5th 907, 920, (non conveniens motion should be granted unless action in the foreign venue "*would be barred*, as opposed to *might be barred*" by statute of limitations (emphasis in original)).

Defendant bears the burden of proof of establishing that: (1) a suitable alternative forum is available, and (2) the balance of public and private interests factors makes it just that the litigation proceed in the alternative forum. *Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751. The inquiry is not whether some other state or country provides a better forum than does California, but whether California is a seriously inconvenient forum. See *Ford Motor Co. v. Insurance Co. of North America* (1995) 35 Cal.App.4th 604, 611. In *Ford Motor Co.* the court explained that: "Unless the balance is strongly in favor of defendant, the plaintiff's choice of forum should rarely be disturbed." *Id.*, at 610 to 611, and *Morris v. Agfa Corp.* (2006) 144 Cal.App.4th 1452, 1465.

For his motion, Defendant Yannoni points to Plaintiff's interrogatory response, which tracks the allegations in is complaint and FAC, describing actions by Defendant Yannoni, in New Mexico and California, that are the facts in support of Plaintiff's claims of sexual molestation by Defendant Yannoni. [*See* Motion MPA at 3-8.]

Defendant argues New Mexico is a suitable forum because, he argues, most of the alleged acts and omissions giving rise to liability and damages theories alleged in the FAC occurred in New Mexico.

But as Plaintiff notes in his opposition, while the allegations of what was done to him in New Mexico provide important context, his claims in this action are based upon acts of sexual abuse that occurred in California. [Opp. (ROA #302) at 4-5.]

Moreover, Defendant has made no effort to show that the action is not barred by New Mexico's statute of limitations. This is Defendant's burden. *Stangvik, supra,* 54 Cal.3d at 751.

Section 37-1-30 of the New Mexico Statutes provides as follows:

> A. An action for damages based on personal injury caused by childhood sexual abuse shall be commenced by a person before the latest of the following dates:
> (1) the first instant of the person's twenty-fourth birthday; or (2) three years from the date that a person first disclosed the person's childhood sexual abuse to a licensed medical or mental health care provider in the context of receiving health care from the provider.

		At the time of filing his complaint, Plaintiff was 46 years old. Plaintiff disclosed his childhood sexual abuse to a licensed medical provider more than three years prior to filing his Complaint in this action. [Opp. at 9.] Nothing has materially changed since the court denied the prior motion to dismiss for forum non conveniens. Defendant Yannoni relies on substantially the same facts and arguments previously weighed by the court. Indeed, the main change is that now this action has been litigated in this court for over three years. Based on all of the above, Defendant Yannoni's motion to dismiss is denied. Yannoni is to give notice.
4	First Foundation Inc. vs. Keller 2025-01493220	Motions to Compel **Court will hear from counsel**
5	Le vs. Dovinh 2023-01342508	Motion to Compel Deposition (Oral or Written) On plaintiff Vy Le's motion to compel compelling defendant Joseph Dovinh to appear for deposition, the court will hear from the parties about the pending trial date and its impact on Plaintiff's motion. Code Civ. Proc. §2024.020(a). The court also notes there is no proof of service for the opposition filed by Defendant.
6	Madar vs. Nikkiso America, Inc. 2025-01519836	Motion to Be Relieved as Counsel of Record The motion by Stalwart Law Group, APC, to be relieved as counsel of record for Michelle Madar, is granted. The Court finds withdrawal of counsel is appropriate, here, because of the breakdown in the attorney-client relationship that would make it unreasonably difficult for counsel of record to continue its representation. The Rules of Professional Conduct, rule 2.1, states: "In representing a client, a lawyer shall exercise independent professional judgment and render candid advice." The client's profound unhappiness with her counsel of record exercising its independent professional judgment, as required by Rule 2.1, confirms that relief is appropriate.

		Upon the signing of the order, counsel shall serve the signed order on the client and all parties that have appeared. Stalwart Law Group, APC will be relieved as counsel of record for Michelle Madar, effective upon the filing of the proof of service of the signed order upon the client and all parties. The Court declines Madar's request to impose the conditions specified in section XI of her (oversized) opposing memorandum. (See ROA 70 [Opp'n at pp. 31-35].) The Court notes that Madar's request for the Court to issue an order directing counsel to turn over her client file is not necessary. An attorney has a duty to promptly release a client's file upon termination of employment, at the client's request. (Cal. R. Prof. Conduct Rule 1.16.) Failure to do so may be cause for discipline from the State Bar. (Cal. Prac. Guide Prof. Resp. & Liability at ¶ 10:333.) The Court also notes that any extensions for the 07/31/26 motion to compel deadline should be sought from defense counsel. (Code Civ. Proc., § 2016.030 ["*the parties* may by written stipulation modify the procedures provided by this title for any method of discovery," unless otherwise prohibited by the court] [emphasis added].) Stalwart Law Group, APC is ordered to give notice of the ruling.
7	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	The motion by Defendant Ulwelling Law, APC ("Ulwelling Law") for an order striking the Complaint filed by Plaintiff Bonita M. McPherson, on behalf of Western Tap Manufacturing Company, Inc. ("Plaintiff") and the three causes of action therein is DENIED. Ulwelling Law's demurrer to the three causes of action alleged in Plaintiff's Complaint is overruled in part and sustained in part with 15 days leave to amend. As an initial matter, the Court notes Plaintiff's oppositions are untimely. (Code Civ. Proc., § 1005, subd. (b).) Ulwelling Law objected to the untimeliness of Plaintiff's oppositions. Ulwelling Law served and filed timely and substantive replies. The Court exercises its discretion to consider the untimely oppositions. The Court also notes the Plaintiff's proofs of service for Plaintiff's oppositions did not include the server's email address. (Code Civ. Proc. § 1013b, subd. (b)(1).) Ulwelling Law did not object to the method of service. The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents.

Demurrer to Complaint

Ulwelling Law's unopposed requests for the Court to take judicial notice of filings in the Underlying Action, request numbers 1 and 4-15 are granted. (Evid. Code, § 452, subd. (d).) However, the Court may not take judicial notice of the truth of the matter stated in the documents. (*Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed therein. (*Fremont Indem. Co. v. Fremont Gen. Corp*. (2007) 148 Cal.App.4th 97, 113.) The court cannot accept as true the contents of pleadings or exhibits in the other action just because they are part of the court record or file. Such documents are inadmissible hearsay. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.)

Ulwelling Law's unopposed request numbers 2 and 3 for the Court to take judicial notice of documents recorded with the County Recorder are granted. The Court may take judicial notice of documents recorded with the County Recorder's Office; however, that does not mean it may take judicial notice of factual matters stated therein. (*Poseidon Development, Inc. v. Woodland Lane States, LLC* (2007) 152 Cal.App.4th 1106, 1117.) Courts may also take judicial notice of a variety of matters that can be deduced from the documents, such as the parties, dates, and legal consequences of a series of recorded documents relating to a real estate transaction. (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 264-265.)

Civil Code Section 1714.10

Ulwelling Law demurs to the first cause of action for aiding and abetting breach of fiduciary duty and third cause of action for aiding and abetting unlawful fraudulent transfer on the ground that the causes of action are barred because Plaintiff did not comply with Civil Code section 1714.10.

Civil Code section 1714.10, subdivision (a), prohibits a cause of action "against an attorney for a civil conspiracy with his or her client arising from any attempt to contest or compromise a claim or dispute, and which is based upon the attorney's representation of the client," unless the court "enters an order allowing the pleading that includes the claim for civil conspiracy to be filed." The order must be sought by a verified petition, accompanied by the proposed pleading and supporting affidavits stating the facts upon which the liability is based. The statute requires a determination "that the party seeking to file the pleading has established that there is a reasonable probability that the party will prevail in the action." (Civ. Code, § 1714.10, subd. (a).) The purpose of section Civil Code section 1714.20 is to "weed out the harassing claim of conspiracy that is so lacking in reasonable foundation as to verge on the frivolous." (*Berg & Berg Enterprises, LLC v. Sherwood Partners, Inc.* (2005) 131 Cal.App.4th 802, 815 [citing *Evans v. Pillsbury, Madison & Sutro* (1998) 65 Cal.App.4th 599, 604].)

Excepted from this requirement, is any cause of action "against an attorney for a civil conspiracy with his or her client, where (1) the attorney has an independent legal duty to the plaintiff, or (2) the attorney's acts go beyond the performance of a professional duty to serve the client and involve a conspiracy to violate a legal duty in furtherance of the attorney's financial gain." (Civ. Code, § 1714.10, subd. (c).) The "independent duty" exemption may arise "when an attorney engages in conduct that goes 'way beyond the role of [a] legal representative.'" (*Klotz v. Milbank, Tweed, Hadley & McCloy* (2015) 238 Cal.App.4th 1339, 1351, citation omitted.) Further, "attorneys, like anyone else, have an independent duty to avoid [committing fraud]." (*Berg & Berg Enterprises, LLC v. Sherwood Partners, Inc., supra*, 131 Cal.App.4th at p. 825; *Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1151 ["It is well established that an attorney has an independent legal duty to refrain from defrauding nonclients"]. For the latter exception to apply, "there must be allegations the attorneys were acting 'as individuals for their individual advantage' and not solely on behalf of the principal." (*Cortese v. Sherwood* (2018) 26 Cal.App.5th 445, 460.)

A cause of action for aiding and abetting may fall within the ambit of section 1714.10. (*Howard v. Superior Court* (1992) 2 Cal.App.4th 745, 749.) The *Howard* Court noted "while aiding and abetting may not require a defendant to agree to join the wrongful conduct, it necessarily requires a defendant to reach a conscious decision to participate in tortious activity for the purpose of assisting another in performing a wrongful act. A plaintiff's object in asserting such a theory is to hold those who aid and abet in the wrongful act responsible as joint tortfeasors for all damages ensuing from the wrong." (*Id.*)

Plaintiff alleges Ulwelling Law represented the Southards in the Underlying Action in which Plaintiff alleged the Southards breached their fiduciary duties to Western Tap. (Complaint, ¶¶ 1, 2, 27, and 28.) Plaintiff alleges the Southards purchased the Subject Property through their Southard 2007 Trust on or about 12/7/2015. (*Id.*, ¶¶ 2 and 26, Exhibit B.) Thereafter, the Southard 2007 Trust quitclaimed the Subject Property to the Southard LLC on or about 6/10/2016. (*Id.*, ¶¶ 26, Exhibit C.) On or about October 2019, Ulwelling Law, counsel for the Southards, recorded a deed of trust against the Subject Property. (*Id.*, ¶¶ 28 and 41, Exhibit D.) The deed of trust reflects it was entered into between the Southard LLC and Ulwelling Law. (*Id.*, Exhibit D.) While the appeal of the Underlying Action was pending, the Southard LLC sold the property on or about 7/6/2022 and Ulwelling Law released the lien against the Subject Property. (*Id.*, ¶¶ 35, 36, 46, and 48.) Plaintiff alleges Ulwelling Law aided and abetted in the Southards' breach of fiduciary duty by facilitating, encouraging, assisting, or abetting in the alienation of the Subject Property. (*Id.*, ¶ 35.) Plaintiff also alleges Ulwelling Law benefitted from Ulwelling Law's recording and release of the deed of trust when the Subject Property was sold in 2022. (*Id.*, ¶ 48.)

In support of the third cause of action, Plaintiff incorporates the allegations above and alleges Ulwelling Law received money from the sale of the Subject Property in 2022, while the appeal was pending, and that Ulwelling Law aided and abetted in hindering, delaying, and defrauding Plaintiff from receiving the Subject Property and monies flowing from the sale of the Subject Property. (Complaint, ¶¶ 54 and 57.) Plaintiff alleged Ulwelling Law recorded the deed of trust to help the Southards pay their attorneys' fees. (*Id.*, ¶ 28.)

Plaintiff has not alleged sufficient facts to show Ulwelling Law's recording and releasing the deed of trust goes beyond the performance of a professional duty to serve the client, or that the conduct violates a legal duty in furtherance of Ulwelling Law's financial gain. Plaintiff's complaint does not allege facts to show section 1714.10 does not apply. There is no dispute that Plaintiff did not comply with section 1714.10. Accordingly, the demurrer is sustained with 15 day leave to amend.

<u>Statute of limitations</u>
"In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (*Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403.)

The parties concede a four-year statute of limitations applies to each of the three causes of action. (Demurrer, 9:26-10:5, 12:8-10, and 15:15-20; Opposition, 12:14-19, 17:15-16, and 19:16-19.)

Plaintiff's Complaint expressly alleges Ulwelling Law aided and abetted in the Southards' breach of fiduciary duty and aided in the Southards' unlawful fraudulent transfer by facilitating, encouraging, assisting, or abetting in the alienation of the Subject Property, which occurred July 6, 2022. (Complaint, ¶¶ 3, 35, 46, 48, 54, and 57.) Plaintiff also alleged Ulwelling Law hindered, delayed, and defrauded Plaintiff from receiving the Subject Property and monies flowing from the sale of the Subject Property when the Subject Property was sold and resold in July 2022 and November 2022. (*Id*., ¶¶ 3, 35, 46, 48, 50, and 52.) Plaintiff commenced this action on July 6, 2025, less than 4 years after the purported fraudulent transfer. Demurrer is overruled.

Agent immunity rule

"The agent's immunity rule emanates from a further holding in *Wise* that: 'Agents and employees of a corporation cannot conspire with their corporate principal or employer where they act in their official capacities on behalf of the corporation and not as individuals for their individual advantage.' (*Wise, supra,* 223 Cal.App.2d at p. 72, 35 Cal.Rptr. 652.) The rule 'derives from the principle that ordinarily corporate agents and employees acting for or on behalf of the corporation cannot be held liable for inducing a breach of the corporation's contract since being in a confidential relationship to the corporation their action in this respect is privileged.' (*Id.* at pp. 72–73, 35 Cal.Rptr. 652.) We have endorsed and applied the agent's immunity rule as expressed in *Wise* (e.g., *Shoemaker v. Myers* (1990) 52 Cal.3d 1, 24–25, 276 Cal.Rptr. 303, 801 P.2d 1054; *Gruenberg, supra,* 9 Cal.3d at p. 576, 108 Cal.Rptr. 480, 510 P.2d 1032; *Doctor's Co., supra,* 49 Cal.3d at p. 45, 260 Cal.Rptr. 183, 775 P.2d 508)." (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 512, fn 4.)

It is well-established that, so long as Ulwelling Law was acting within his official capacity as an agent for the Southards, there is no liability for "conspiracy" between an agent and its principal. (*Pavicich v. Santucci* (2000) 85 Cal.App.4th 382, 394 ["under the agent's immunity rule, an agent is not liable for conspiring with the principal when the agent is acting in an official capacity on behalf of the principal"].)

Here, the claim is one for aiding and abetting, rather than conspiring. Ulwelling Law cites to no legal authority to show whether this rule applies to aiding and abetting causes of action. In addition, Plaintiff did not allege Ulwelling Law was acting within its official capacity as the Southards' attorney in recording or releasing the deed of trust.

Accordingly, Ulwelling Law did not show the agent immunity rule applies. Demurrer is overruled.

Although Ulwelling Law contends it demurs to the three causes of action on the ground that Plaintiff failed to allege sufficient facts, this ground is not raised in the notice of demurrer and not addressed in the memorandum. (Notice of Errata, ROA No. 68, Exhibit A, 2:7; *but see, generally,* Notice of Demurrer, ROA No. 59 and Notice of Errata, Exhibit A.) Accordingly, the Court declines to consider whether Plaintiff alleged sufficient facts to state the three causes of action.

Motion to Strike - Anti SLAPP

Ulwelling Law's unopposed requests for the Court to take judicial notice of filings in *McPherson vs. Southard*, case number 30-2018-00964601 ("Underlying Action"), request numbers 1 and 4-15 are granted. (Evid. Code, § 452, subd. (d).) However, the Court may not take judicial notice of the truth of the matter stated in the documents. (*Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed therein. (*Fremont Indem. Co. v. Fremont Gen. Corp*. (2007) 148 Cal.App.4th 97, 113.) The court cannot accept as true the contents of pleadings or exhibits in the other action just because they are part of the court record or file. Such documents are inadmissible hearsay. (*Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.)

Ulwelling Law's unopposed request numbers 2 and 3 and Plaintiff's unopposed requests for the Court to take judicial notice of documents recorded with the County Recorder are granted. The Court may take judicial notice of documents recorded with the County Recorder's Office; however, that does not mean it may take judicial notice of factual matters stated therein. (*Poseidon Development, Inc. v. Woodland Lane States, LLC* (2007) 152 Cal.App.4th 1106, 1117.) Courts may also take judicial notice of a variety of matters that can be deduced from the documents, such as the parties, dates, and legal consequences of a series of recorded documents relating to a real estate transaction. (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 264-265.)

General legal authority regarding SLAPP motions

Code of Civil Procedure section 425.16 provides in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." This section is to be construed broadly. (Code Civ. Proc., § 425.16, subd. (a).)

"In making its determination, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc., § 425.16, subd. (b)(2).)

The court's determination of an anti-SLAPP motion is a two-step process. First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) The nonmoving party establishes a probability of prevailing by showing that the claim has minimal merit. (*Gruber v. Gruber* (2020) 48 Cal.App.5th 529, 537; *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 825; *see also, Finton Construction, Inc. v. Bidna & Keys, APLC* (2015) 238 Cal.App.4th 200, 211.) A claim has minimal merit if it is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the nonmoving party is credited. (*Gruber v. Gruber*, 48 Cal.App.5th at 537.) The Court evaluates the moving party's evidence only to determine if it has defeated that submitted by the nonmoving party as a matter of law. (*Id.*)

Because of the amount of litigation that has arisen pursuant to this statute and the litigants' confusion regarding this statute, the California Supreme Court further clarified the process as follows:

> At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court,

> without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.
> (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.)

The defendant is not required to show her actions "are constitutionally protected under the First Amendment as a matter of law." (*Navellier*, 29 Cal.4th at 94.) The first prong is met by showing the cause of action is based on a person's "constitutional free speech and petitioning activity as defined in the anti-SLAPP statute." (*Id*., at 95.)

There are four categories of protected speech for an anti-SLAPP motion (Code Civ. Proc., § 425.16, subd. (e)):

(1) statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law;

(2) statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law;

(3) statements made in a place open to the public or a public forum in connection with an issue of public interest; or

(4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1060 clarified that a claim "may be struck only if the speech or petitioning activity *itself* is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (*See Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670 [The defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech.].)

"Many Courts of Appeal…have taken care to respect the distinction between activities that form the basis for a claim and those that merely lead to the liability-creating activity or provide evidentiary support for the claim." (*Park*, 2 Cal.5th at 1064.) An anti-SLAPP motion should be granted if liability is based on speech or petitioning activity itself. (*Id*., at 1065.)

To determine whether a cause of action is based on protected activity, the Court examines "'the *principal thrust* or *gravamen* of a plaintiff's cause of action to determine whether the anti-SLAPP statute applies." (*Okorie v. Los Angeles Unified School District* (2017) 14 Cal.App.5th 574, 586.) The principal thrust is assessed by identifying the allegedly wrongful and injury-producing conduct that provides the foundation for the claim. (*Id*., at 586-587; *see Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387 [The gravamen of an action is the allegedly wrongful and injury-producing conduct, not the damage which flows from said conduct.].)

"Where the protected activity will only be used as evidence in the case, and no claim is based on it, the protected activity is only incidental to the claims." (*Drell v. Cohen* (2014) 232 Cal.App.4th 24, 29; *see*, *Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 43, citing *Baral*, 1 Cal.5th at 394 ["Allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute."].)

As the California Supreme Court clarified, "identification of causes of action arising from protected activity ordinarily occurs at the first step…At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them." (*Newport Harbor Offices & Marina, LLC*, 23 Cal.App.5th at 43, citing *Baral*, 1 Cal.5th at 396; *see Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 396-397 ["[T] o determine the applicability of the anti-SLAPP statute, we look to the allegedly wrongful and injurious conduct of the defendant, *rather than the damage which flows from said conduct*."].)

"[I]n ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability." (*Newport Harbor Offices & Marina, LLC*, 23 Cal.App.5th at 44, citing *Park*, 2 Cal.5th at 1063.)

However, just identifying protected activity is not the only requirement in the first step. The defendant must identify the claims for relief supported by the allegations of protected activity. (*Newport Harbor Offices & Marina, LLC*, 23 Cal.App.5th at 43.)

Merits

Plaintiff's complaint alleges three causes of action against Ulwelling Law: aiding and abetting breach of fiduciary duty; unlawful fraudulent transfer; and aiding and abetting unlawful fraudulent transfer.

Plaintiff's complaint alleges Ulwelling Law recorded a deed of trust against the Subject Property Plaintiff contends in or about October 2019 to help pay the Southards' attorneys' fees in the Underlying Action, that the Subject Property was sold while an appeal of the Underlying Action was pending, and that Ulwelling Law permitted the sale by releasing its lien without protest and being paid its attorneys' fees out of the sale of the Subject Property. (Complaint, ¶ 28, 35, 36, 38, 41, 45, 46, 48, 50-52, 54, 56, and 57.)

"Liability may ... be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1325-1326, citing *Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 846, 33 Cal.Rptr.2d 438; *see also, American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1475;Rest.2d Torts, § 876.) "Mere knowledge that a tort is being committed and the failure to prevent it does not constitute aiding and abetting." (*Id*.)

Liability for aiding and abetting "depends on proof the defendant had actual knowledge of the specific primary wrong the defendant substantially assisted." (*American Master Lease LLC v. Idanta Partners, Ltd.*, 225 Cal.App.4th at 1475, citing *Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1145.)

A fraudulent transfer claim under the Uniform Voidable Transactions Act is codified in Civil Code section 3439, et seq. "A fraudulent conveyance is a transfer by the debtor of property to a third person undertaken with the intent to prevent a creditor from reaching that interest to satisfy its claim." (*Kirkeby v. Superior Court of Orange County* (2004) 33 Cal.4th 642, 648.)

Pursuant to Civil Code section 3439.04(a):

A transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor's claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation as follows:
(1) With actual intent to hinder, delay, or defraud any creditor of the debtor.
(2) Without receiving a reasonably equivalent value in exchange for the transfer or obligation, and the debtor either:
(A) Was engaged or was about to engage in a business or a transaction for which the remaining assets of the debtor were unreasonably small in relation to the business or transaction.
(B) Intended to incur, or believed or reasonably should have believed that the debtor would incur, debts beyond the debtor's ability to pay as they became due.

To determine actual intent, factors to consider include:
(1) Whether the transfer or obligation was to an insider.
(2) Whether the debtor retained possession or control of the property transferred after the transfer.
(3) Whether the transfer or obligation was disclosed or concealed.
(4) Whether before the transfer was made or obligation was incurred, the debtor had been sued or threatened with suit.
(5) Whether the transfer was of substantially all the debtor's assets.
(6) Whether the debtor absconded.
(7) Whether the debtor removed or concealed assets.
(8) Whether the value of the consideration received by the debtor was reasonably equivalent to the value of the asset transferred or the amount of the obligation incurred.
(9) Whether the debtor was insolvent or became insolvent shortly after the transfer was made or the obligation was incurred.
(10) Whether the transfer occurred shortly before or shortly after a substantial debt was incurred.
(11) Whether the debtor transferred the essential assets of the business to a lienor that transferred the assets to an insider of the debtor.
(Civ. Code, § 3439.04(b).)

Although funding litigation may be considered protected activity, the gravamen of the complaint against Ulwelling Law is not Ulwelling Law helping to pay the Southards' attorneys' fees in the Underlying Action. (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056 ["'Any act' includes communicative conduct such as the filing, funding, and prosecution of a civil action. (*Ludwig v. Superior Court* (1995) 37 Cal.App.4th 8, 17–19, 43 Cal.Rptr.2d 350.) This includes qualifying acts committed by attorneys in representing clients in litigation. (See, e.g., *Chavez v. Mendoza* (2001) 94 Cal.App.4th 1083, 1086, 114 Cal.Rptr.2d 825; *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1418–1420, 103 Cal.Rptr.2d 174.)"].) "A claim does not arise from constitutionally protected activity simply because it is triggered by such activity or is filed after it occurs." (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 283.) The critical point is whether the plaintiff's cause of action itself was based on an act in furtherance of the defendant's right of petition or free speech. (*Id.*)

Ulwelling Law relies on *O'Neil-Rosales v. Citibank (South Dakota) N.A.* (2017) 11 Cal.App.5th Supp. 1 to support its contention that recording the deed of trust is protected activity. In *O'Neil-Rosales*, the attorney recorded an abstract of judgment on behalf of the client and was not recording a deed of trust to secure the attorneys' own attorneys' fees. Nor was the attorney "funding" the litigation.

Like in *Manlin v. Milner* (2022) 82 Cal.App.5th 1004, the alleged protected use (funding litigation) may supply evidence to support the three causes of action; however, that does not convert the use itself into the basis for liability. (*Manlin v. Milner* (2022) 82 Cal.App.5th 1004, 1020.) Like *Manlin*, Plaintiff could have omitted the allegations regarding Ulwelling Law helping pay the Southards' attorneys' fees in the Underlying Action and still allege the same three causes of action against Ulwelling Law. (*Id.*)

Plaintiff does not allege Ulwelling Law aided and abetted a breach of fiduciary duty, engaged in an unlawful fraudulent transfer, or aided and abetted an unlawful fraudulent transfer by funding the Southards' litigation. Ulwelling Law's alleged misconduct is recording a deed of trust against the Subject Property, releasing the deed of trust while the appeal was pending on the Underlying Action, and receiving funds from the sale. Plaintiff alleges Ulwelling Law assisted in the alienation of the Subject Property through these actions. This is not protected activity.

Nonjudicial foreclosure proceedings are not protected activity under the anti-SLAPP. (*Garretson v. Post* (2007) 156 Cal.App.4th 1508, 1520-1521.) As the court in *Garretson* noted, " 'a nonjudicial foreclosure is a private, contractual proceeding, rather than an official, governmental proceeding or action.' " (*Id.*, at p. 1521 [citing legislative history of section 2924].) In fact, "[n]onjudicial foreclosure merely provides a nonjudicial, private alternative to judicial foreclosure." (*Id.*)

The *Garretson* court concluded that plaintiff's wrongful foreclosure claim was not based on any privileged action, but on the nonjudicial proceeding itself. (*Id.*, at p. 1523.) "[I]t is not enough to show that the act occurred in connection with an official proceeding authorized by law. Defendant also must show that the cause of action arose from protected speech or petitioning the government for redress of a grievance. Although the anti-SLAPP statute must be construed broadly, the Legislature did not intend to apply the statute to purely private transactions." (*Id.*, at 1524.)

Here, there is no dispute that Ulwelling Law recorded a deed of trust.

A deed of trust is practically and substantially only a mortgage with a power of sale. (*Majestic Asset Management LLC v. The Colony at California Oaks Homeowners Assn.* (2024) 107 Cal.App.5th 413, 424.) "A deed of trust thus creates a lien on property to secure the performance of some act." (*Id.*) The purpose of a deed of trust is to make sure Ulwelling Law was paid for its services. Ulwelling Law was not simply seeking payment from property purportedly owned by the Southards. The property against which the deed of trust was recorded was held by the Southards' limited liability company. Ulwelling Law has not shown recording a deed of trust or releasing a deed of trust is protected activity.

Plaintiff also contends that Ulwelling Law created shell companies for the purpose of executing the unlawful transfer, citing to paragraph 30 of the complaint. (Opposition, 14:10-11; *see*, Opposition, 11:12-14.) However, there is no such allegation in the Complaint.

Because the misconduct alleged is not protected activity, the Court need not determine whether Ulwelling Law's conduct was illegal as a matter of law. The motion is denied.

Case Management Conference

Continued to July 20, 2026 at 9:00 a.m.

Order to Show Cause re: Dismissal for Failure to Serve

Continued to July 20, 2026 at 9:00 a.m.

Plaintiff to give notice.

8	Morrissey vs. Min 2022-01285505	Motion for an Order Appointing Matthew L. Taylor as Partition Referee Plaintiff Marcia Morrissey's unopposed motion for an order appointing Matthew L. Taylor as partition referee is granted. On or about 7/21/25, the Court entered an Interlocutory Judgment stating that, "a qualified and bonded referee, who name shall be provided by Plaintiff, will be appointed for the purpose of managing, maintaining, and selling the Real Property." (ROA 97.) By this motion, Plaintiff proposes the appointment of Matthew L. Taylor, a licensed attorney. (ROA 105.) Among other qualifications and experience, Mr. Taylor attests he has "served as Receiver, Judge Pro Tem, Partition Referee and Special Master for the California Superior Court System" and has "worked directly as the Receiver and a Receiver's agent, supervising day-today operations of properties and companies in receivership…" (Taylor Decl. at ¶¶ 2-3, Exh. A.) In his capacity as "both Receiver and Partition Referee [he has] sold dozens of real properties for the court system in the past few years" and is "currently either Receiver or Referee in more than 10 matters with several properties currently listed for private sale under court supervision." (Taylor Decl. at ¶ 5.) Further, Mr. Taylor attests that he is "not a party to this action," does "not represent any parties to this action," and is "not related to any judge of the Court by consanguinity or affinity within the third degree." He does "not personally know any of the parties in this action." (Taylor Decl. at ¶ 8.) Thus, the Court finds Mr. Taylor is not ineligible to serve as partition referee for the subject real property. (See Code Civ. Proc., § 873.050.) Plaintiff shall give notice of the ruling.
9	Nystul vs. Airborne Systems North America of CA, Inc.	**Motions to Compel Depos** **Withdrawn**

	2024-01374494	
10	Perez vs. TY Caldwell, DDS and Susan Caldwell, DDS 2025-01463289	Motion to Be Relieved as Counsel of Record The motion by Cameron D. Coy of the Law Offices of Cameron D. Coy, to be relieved as counsel of record for J Um DDS Cypress, Inc., is granted. Upon the signing of the order, counsel shall serve the signed order on the client and all parties that have appeared. Cameron D. Coy of the Law Offices of Cameron D. Coy will be relieved as counsel of record for J Um DDS Cypress, Inc., effective upon the filing of the proof of service of the signed order upon the client and all parties. The Law Offices of Cameron D. Coy shall give notice of the ruling. OSC re. Representation of J Um DDS Cypress, Inc. is set 7-20-26 at 9:00 a.m.
11	Sitta, Paige & Associates, Inc. vs. Creative Installations, Inc. 2025-01477302	**1.** Motion to Compel Answers to Form Interrogatories**2.** Motion to Compel Production **Motion to Compel Responses to Form Interrogatories** **Motion to Compel Responses to Request for Production of Documents** The unopposed motions by Plaintiff Sitta, Paige & Associates, Inc. dba Paige Floor Covering Specialists ("Plaintiff") for an order compelling Defendant Creative Solutions, Inc. ("Creative") to serve responses to Plaintiff's form interrogatories, set one, and request for production of documents, set one, are GRANTED. <u>Applicable legal authority</u> A propounding party may move for an order compelling responses to interrogatories at any time "[i]f a party to whom interrogatories are directed fails to serve a timely response." (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Defendant waived "any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290, subd. (a).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the

time to respond has expired, and that no response of any kind has been served. (*See Leach v. Superior Court (Markum)* (1980) 111 Cal.App.3d 902, 905-906.)

A propounding party may move for an order compelling responses to a demand for inspection at any time "[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response." (Code Civ. Proc., § 2031.300, subd. (b).) By failing to serve timely responses, Defendant waived "any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)." (Code Civ. Proc., § 2031.300, subd. (a).)

Pursuant to Code of Civil Procedure section 2030.290, subdivision (c), the Court "shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

"Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).)

The "request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. (Code Civ. Proc. § 2023.040.)

<u>Merits</u>
Plaintiff showed Plaintiff properly electronically served the first set of form interrogatories on Creative on October 14, 2025 and the first set of requests for production on November 14, 2025, and that Creative did not respond to the written discovery. (Gibson Decl. ISO Motion to Compel Responses to Form Interrogatories, ¶¶ 2 and 4, Exhibit 1; Gibson Decl. ISO Motion to Compel Responses to Request for Production of Documents, ROA No. 83, ¶¶ 2 and 4, Exhibit 1.)

Plaintiff's unopposed motions are granted. Creative shall serve verified Code-compliant responses without objection within 15 days.

		No sanctions. Plaintiff did not provide proper notice of Plaintiff's requests for sanctions. (Code Civ. Proc. § 2023.040; Notice of Motion and Motion to Compel Responses to Form Interrogatories; Notice of Motion and Motion to Compel Responses to Request for Production of Documents.) Plaintiff shall give notice.
12	Williams vs. West Coast Casters & Wheels, Inc. 2024-01388763	Motion for Leave to Amend **Continued to 09/14/2026**
13	Wilson vs. Dan 2025-01523063	Motion for Judgment on the Pleadings Defendants Claudiu Dan's, Ariel Corral's, Julio Lopez's, Martin Martinez's, and Samuel Membreno's motion for judgment on the pleadings as to Plaintiff Andrew Wilson's Complaint is granted with 30 days leave to amend. Defendants' request for judicial notice filed with their reply brief is granted: 1. The California Secretary of State's Business Search record for Westminster Bible Chapel of Those Who Meet in the Name of the Lord Jesus Christ Alone, Entity No. 526896 ("WBC"), reflecting the WBC's classification as "Nonprofit Corporation - CA - Religious," its formation in California, and its initial filing date of 05.18.67. 2. The Statement of Information for WBC filed with the California Secretary of State on 08.24.25. 3. The Articles of Incorporation of WBC, endorsed-filed by the Secretary of State on 05.18.67, together with the Bylaws attached thereto. 4. A number of records filed in this case: (a) the Complaint, filed 10.30.25 (ROA 2); (b) the Verified Answer of Defendant Claudiu Dan, filed 01.26.26 (ROA 200); (c) Defendants' Motion for Judgment on the Pleadings, filed 02.23.26 (ROA 219); (d) the Notice of Joinder and Supplemental Memorandum of Points and Authorities filed by WBC through its current Board of Directors, filed 04.06.26 (ROA 301), a true and correct

copy of which is attached as Exhibit F; and (e) Defendants' Notice of Appeal, filed 04.26.26 (ROA 307)

5. The letter of the California Franchise Tax Board dated 05.17.67, determining WBC to be exempt from State franchise tax under Revenue and Taxation Code § 23701d as an organization "organized and operated exclusively as a religious organization."
6. The determination letter of the United States Internal Revenue Service dated 08.07.67, recognizing WBC as exempt from federal income tax as an organization described in § 501(c)(3) of the Internal Revenue Code, with the stated purpose classification as "Religious"

These are proper subjects of judicial notice. While generally judicial notice is not a proper request on reply, here the request responds directly to Plaintiffs' arguments in opposition.

Plaintiffs Andrew Wilson, derivatively on behalf of Westminster Bible Chapel of Those Who Meet in the Name of the Lord Jesus Christ Alone ("Wilson"), and Westminster Bible Chapel of Those Who Meet in the Name of the Lord Jesus Christ Alone, a non-profit corporation (the "Church," collectively, "Plaintiffs")
allege the following four causes of action: (1) cancellation of an instrument, (2) conversion, (3) fraud, and (4) declaratory and injunctive relief.

An overarching issue in this matter is whether Plaintiffs' claims are analyzed under general corporate laws or the more specific Nonprofit Religious Corporations law ("NRC"), set forth in Corp. Code, § 9110 et seq.

Plaintiffs argue that there is no allegation in the Complaint that the corporation is governed by the non-profit religious corporation's laws, as opposed to the California general non-profit corporation's laws. This argument fails based on the Complaint itself (see ¶ 2) and on the documents that form the basis of Defendants' request for judicial notice. Specifically, the California Secretary of State information for the Westminster Bible Chapel states that it is a "Nonprofit Corporation – CA – Religious." (RFJN, Ex. C.) The Court therefore finds that the NRC controls.

Both the NRC and general Corporations statutes authorize representative lawsuits like this one. However, despite bringing the

		action derivatively on behalf of the Church, Plaintiffs did not name it as a nominal defendant. Pursuant to *Grosset v. Wenaas* (2008) 42 Cal.4th 1100, 1108, "[w]hen a derivative suit is brought to litigate the rights of the corporation, the corporation is an indispensable party and <u>must be joined as a nominal defendant</u>." (Emphasis added.) In this respect, Defendants' motion has merit. In addition, Plaintiff(s) improperly allege a direct action by the Church. The Court in *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1003–1004 explains that when a corporation is the beneficiary in a derivative lawsuit such as this one, "[n]<u>aming the corporation a defendant, not a plaintiff, follows from the joinder rules: 'If the consent of any one who should have been joined as plaintiff cannot be obtained, he may be made a defendant.'" [citing Code Civ. Proc., § 382].)</u> In *Wimber v. Scott* (2025) 113 Cal.App.5th 349, 358, the Court explains when a derivative lawsuit may be brought on behalf of a religious corporation as follows: In what situations then can an individual compel a lawsuit on behalf of a nonprofit religious corporation, such as a church? The NRC carefully circumscribes the answer. First, a "member" or "former member" can bring a representative action "to enjoin, correct, obtain damages for or to otherwise remedy a breach of a trust under which any or all of the assets of a corporation are held." (§ 9142, subd. (a)(1).) Second, a "member" can bring a representative action "against the officers or directors of the corporation for violation of their authority." (§ 9141, subd. (a).) Third, a "member" or "former member" (§ 9142, subd. (a)(1)) can bring a representative suit to remedy the misuse of property when property has been contributed to the corporation by a person directly affiliated with the corporation for a specific purpose and the corporation uses that ****391** property for a reason other than that specific purpose. (§ 9143, subd. (a).)

Fourth, a “member” can bring a representative lawsuit to remedy “self-dealing transaction[s] ... to which the corporation is a party and in which one or more of its directors has a material financial interest.” (§ 9243, subds. (a) & (c)(1).)

***359** Last, an “authorized number of members” (§ 9610, subd. (b)), a creditor, or a director may bring a lawsuit on behalf of the corporation against any one of its directors who approve unlawful distributions. (§ 9245, subds. (a)(1)–(3) & (b)(1)–(2).)

It is not clear that Plaintiff’s claims for cancellation of instrument, conversion, fraud and declaratory/injunctive relief are authorized by the NRC as interpreted by the Court in *Wimber*, which provides that a derivative action may only be brought (1) to remedy a breach of breach of trust, (2) for violation of officer/director authority, (3) for misuse of property, (4) due to self-dealing, or (5) against directors who improve unlawful distributions.

Accordingly, the Court finds that Plaintiff fails to allege facts to support each of the four causes of action.

Lastly, Plaintiff failed to comply with Corp. Code, § 5710(b), which requires Plaintiff bringing a derivative action to allege “with particularity plaintiff's efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that plaintiff has either informed the corporation or the board in writing of the ultimate facts of each cause of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file.”

Based on the foregoing, the motion is granted with leave to amend.

Defendants shall give notice.